

A Guide for Facilities

Know Your Rights If a Complaint or Other DMV Charges have been Filed Against You

Protect Your Facility License, Registration or Certification

What to do if a complaint is filed against you

The New York State Department of Motor Vehicles regulates all repair shops, inspection stations, dealers, vehicle dismantlers and other related businesses in NYS. To legally operate as such a business, you must register with DMV. Once your application is approved you will receive a certificate from DMV. A copy of the Commissioner's Regulations that pertain to your type of business may be found on the DMV web site at dmv.ny.gov [1]. They will explain your responsibilities to consumers. You must follow all consumer protection laws and regulations.

DMV advises all consumers who have a complaint against a dealer, inspection station, repair shop, or dismantler to make an attempt to resolve their complaint with the business manager. If they are not successful, they are advised to contact the DMV Consumer & Facilities Services Complaint Unit.

Protect Your Business: Keep a copy of all work orders in an easy-to-access location.

The Complaint Process

If a complaint has been filed against you, a Consumer Services Rep from DMV will contact you in an attempt to resolve this complaint. The CSR will explain the nature of the complaint and will also inform you of your rights, responsibilities, and your liability. If the complaint is not resolved with the CSR, the case will be sent to an Automotive Facilities Inspector (AFI) for a formal investigation.

Avoid costly penalties, fines, and the loss of valuable customers by responding to all DMV inquiries in a timely manner.

The AFI will conduct a formal investigation. The result may be no action, a warning letter (Notice of Investigation) placed in your file, or a formal administrative hearing before an Administrative Law Judge (ALJ). When Vehicle Safety initiates the hearing process, you may be offered the opportunity through a "hearing waiver" to admit to the charges and to either pay a specified monetary penalty and/or to accept a suspension. If the waiver is accepted, no hearing is required. If the offer is rejected, a hearing must be held.

The result of the hearing may be no action, a civil penalty, and/or a suspension or revocation of your ability to operate as a vehicle related business in NYS. You may also be offered the opportunity to pay restitution to the consumer in lieu of the fines and/or penalties, or to have the

penalty reduced.

The Hearing Process

You are entitled to hire an attorney and to bring that attorney to the hearing. The Department of Motor Vehicles is the petitioner in this case and the complainant may be a witness for the case.

As a result of the hearing, the ALJ may sustain some, all, or none of the charges. There may be no action, a warning, the imposition of a suspension, revocation, and/or civil penalties. If the ALJ only imposes civil penalties, in order to prevent the loss of your operating privilege, you must pay all fines and penalties. You will receive a letter from DMV shortly after the hearing. You will have 30 days from the date of the order by the judge to pay your fine or penalty.

Failure to pay any fines or penalties or to serve out your suspension will result in indefinite suspension of your business certificate and the possible assessment of a lien against your business. However, if you pay your fine and/or penalty or serve out your period of suspension, you will be back in business after complete compliance. If you are revoked, you must surrender all supplies and cease to operate.

You have the right to appeal any adverse decision. If you choose to appeal, you have 60 days from the date of the ALJ's decision to file the Administrative Appeal Form [2] (AA-33A), which must be accompanied by the appropriate filing fee.

Avoid Losing Your Facility License, Registration or Certification

Your facility license, registration or certification enables you to operate in NYS. Complaints filed and charges brought against you can result in the loss of your privilege to operate as a business in NYS.

Complaint Unit: Phone: 1-518-474-8943 Fax: 1-518-486-4102

Case Processing Unit: 1-518-474-1510

Office of Vehicle Safety & Clean Air Consumer & Facility Services Bureau

New York State Department of Motor Vehicles Mark J. F. Schroeder, Commissioner

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